point is reverse the erroneous liability finding. So the finality rule of § 1291 precludes interlocutory review of a *Yearsley* denial.[5]

For those reasons, we hold that the Court of Appeals lacked jurisdiction over GEO's appeal. If eventually found liable, GEO may of course appeal the District Court's rejection of its asserted *Yearsley* defense. But GEO must wait until then. A *Yearsley* denial is not appealable before the trial court's proceedings have ended.

We therefore affirm the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

*It is so ordered.*

JUSTICE THOMAS, concurring in part and concurring in the judgment.

I concur in Parts I and III of the Court's opinion and in its judgment. I agree with the Court that *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), and similar decisions establish a defense from liability and not an immunity from suit. See *ante*, at 448–449. Orders rejecting *Yearsley* defenses are therefore unlike the orders denying immunities that this Court has already held to be immediately appealable. Because no other statute or rule authorized an interlocutory appeal here, the Court correctly affirms the Tenth Circuit's dismissal. I do not join Part II because "[w]e need not, and in my view should not, further justify our holding by applying" the collateral-order doctrine established by *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949). *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 115 (2009)

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[5] This holding still allows review of a given *Yearsley* denial by means of § 1292(b)'s separate appeal-certification process. Under that provision, a district court may find that the special difficulty and importance of an otherwise unappealable order counsels in favor of immediate review, and an appellate court may accept that determination. Here, though, the District Court saw no reason to act under § 1292(b).

(THOMAS, J., concurring in part and concurring in judgment). I remain of the view that we should not expand the *Cohen* collateral order doctrine beyond orders that our precedents have already held to be immediately appealable.

The *Cohen* collateral-order doctrine, which allows federal courts to exercise appellate jurisdiction over certain interlocutory orders, conflicts with Congress's authority over federal appellate jurisdiction. U. S. Const., Art. I, § 8, cl. 9; Art. III, § 1. By statute, parties generally cannot appeal before final judgment. See 28 U. S. C. § 1291; *ante,* at 443–444. Congress has established certain exceptions to that final-judgment rule that allow parties to appeal some interlocutory orders immediately. *E. g.*, § 1292(a)(1). It has also authorized this Court to create further exceptions through rulemaking. § 1292(e). *Cohen*'s collateral-order doctrine allows judges to create additional exceptions by judicial opinion, which bypasses "'Congress's designation of the rulemaking process as the way to define or refine when a district court ruling is "final" and when an interlocutory order is appealable.'" *Mohawk Industries*, 558 U. S., at 114–115 (opinion of THOMAS, J.) (quoting *Swint* v. *Chambers County Comm'n*, 514 U. S. 35, 48 (1995)). For that reason, if an interlocutory order "is not on all fours with orders we previously have held to be appealable under the collateral order doctrine," it should not be immediately appealable. *Mohawk Industries*, 558 U. S., at 115 (opinion of THOMAS, J.).

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JUSTICE ALITO, concurring in the judgment.

I agree with the Court that the defense conferred by *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), is not an "immunity from suit." I therefore agree that an order denying a *Yearsley* defense is not a "collateral order" subject to immediate appeal. But I would not rest these conclusions solely on the fact that *Yearsley*'s applicability "turn[s] on [the defendant's] conduct's legality." *Ante,* at 445. Under the collateral-order doctrine, defendants may sometimes appeal